

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Annette Castillo	Team: Squad #12	CCRB Case #: 202401079	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 01/30/2024 11:09 AM	Location of Incident: § 87(2)(b) in the Bronx	18 Mo. SOL 7/30/2025	Precinct: 41		
Date/Time CV Reported Tue, 01/30/2024 2:45 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 01/30/2024 2:45 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Harryson Cothias	01765	973074	041 PCT
2. PO Keilly Hernandez	06727	968486	041 PCT
3. PO Bryan Toledo	04767	972992	041 PCT
4. PO Adonis Rosario	01111	964741	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Patricia Feliz	22166	972388	041 PCT
2. LT Francisco Hernandez	00000	936753	041 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Harryson Cothias	Force: Police Officer Harryson Cothias hit § 87(2)(b) against an object.	A . Unable to Determine
B . PO Harryson Cothias	Off. Language: Police Officer Harryson Cothias made offensive remarks to § 87(2)(b)	B . Unable to Determine
C . PO Harryson Cothias	Discourtesy: Police Officer Harryson Cothias spoke discourteously to § 87(2)(b)	C . Unable to Determine
D . PO Harryson Cothias	Abuse: Police Officer Harryson Cothias entered § 87(2)(b)	D . Substantiated
E . PO Keilly Hernandez	Abuse: Police Officer Keilly Hernandez entered § 87(2)(b)	E . Substantiated
F . PO Bryan Toledo	Abuse: Police Officer Bryan Toledo entered § 87(2)(b)	F . Unable to Determine
G . PO Adonis Rosario	Abuse: Police Officer Adonis Rosario entered § 87(2)(b)	G . Unable to Determine
H . PO Harryson Cothias	Abuse: Police Officer Harryson Cothias failed to provide § 87(2)(b) with a business card.	H . Substantiated
I . PO Keilly Hernandez	Abuse: Police Officer Keilly Hernandez failed to provide § 87(2)(b) with a business card.	I . Substantiated
J . PO Harryson Cothias	Abuse: Police Officer Harryson Cothias improperly used his body-worn camera.	J . Substantiated
K . PO Keilly Hernandez	Abuse: Police Officer Keilly Hernandez improperly used her body-worn camera.	K . Substantiated
L . PO Bryan Toledo	Abuse: Police Officer Bryan Toledo improperly used his body-worn camera.	L . Substantiated
M . PO Adonis Rosario	Abuse: Police Officer Adonis Rosario improperly used his body-worn camera.	M . Substantiated

Case Summary

§ 87(2)(b) filed this complaint in person at the CCRB on January 30, 2024.

On January 30, 2024, at approximately 11:09 AM, PO Harryson Cothias of the 41st Precinct allegedly hit § 87(2)(b) with her apartment door at § 87(2)(b) in the Bronx (**Allegation A: Force, Unable to Determine**). PO Cothias allegedly called § 87(2)(b) a “scary bitch” or “crazy” (**Allegation B: Offensive Language, Unable to Determine**) (**Allegation C: Discourtesy, Unable to Determine**). PO Cothias and PO Keilly Hernandez of the 41st Precinct entered § 87(2)(b) apartment (**Allegations D and E: Abuse of Authority, Substantiated**). PO Bryan Toledo and PO Adonis Rosario of the 41st Precinct allegedly entered § 87(2)(b) apartment (**Allegations F and G: Abuse of Authority, Unable to Determine**). PO Cothias and PO Hernandez failed to provide § 87(2)(b) with a business card (**Allegations H and I: Abuse of Authority, Substantiated**). PO Cothias, PO Hernandez, PO Toledo, and PO Rosario improperly used their body-worn cameras (BWC) (**Allegations J through M: Abuse of Authority, Substantiated**). § 87(2)(b) was not arrested or summonsed as a result of this incident.

The investigation obtained 11 BWC videos pertaining to this incident (Board Review 01), summarized in IA #58 of the digital case file (Board Review 02). § 87(2)(b) provided the investigation with cell phone video recordings (Board Review 03), summarized in IA #53 of the digital case file (Board Review 04).

Findings and Recommendations

Allegation (A) Force: Police Officer Harryson Cothias hit § 87(2)(b) against an object.

§ 87(2)(b) provided a statement to the CCRB on January 30, 2024 (Board Review 05). She stated that she was assaulted by neighbors with a bat outside of the building. § 87(2)(b) then returned to her apartment to retrieve personal items before leaving her apartment again. As she opened her apartment door to leave, she observed four officers, identified by the investigation as PO Cothias, PO Hernandez, PO Toledo, and PO Rosario, going down the stairs. § 87(2)(b) yelled to the officers that she had been assaulted outside of the building with a bat. No officer acknowledged § 87(2)(b) at that point. § 87(2)(b) then closed her apartment door. Approximately five minutes later, § 87(2)(b) heard the officers’ footsteps again, which seemed to be approaching her floor. One of the officers asked § 87(2)(b) what had happened. § 87(2)(b) responded, through the closed door, that she had already told them what happened, but that they had continued walking down the stairs. § 87(2)(b) then told the officers that she did not want to speak with them as she did not believe they were not going to do anything to rectify the situation. The officers left § 87(2)(b) door. Another five to 10 minutes later, § 87(2)(b) exited her apartment and observed through the hallway window that the four officers were outside speaking with her next-door neighbor. § 87(2)(b) opened the window and told the officers that she had not opened her door because she did not trust them. PO Cothias told § 87(2)(b) to stay where she was and he ran back into the building. § 87(2)(b) returned to her apartment and wished to close the door, but before § 87(2)(b) could close her apartment door, PO Cothias kicked her door inward toward her. § 87(2)(b) was standing in her apartment and the door hit her in the face. § 87(2)(b) lip was bleeding as a result of the impact. § 87(2)(b) held onto the door to maintain her balance and did not fall. When § 87(2)(b) asked PO Cothias about his actions, he denied having hit her with the door.

In § 87(2)(b) cell phone video, titled “\20240130_112538.mp4” (Board Review 06), at 14 seconds, § 87(2)(b) stands at her open apartment door facing out into the hallway. § 87(2)(b)

shouts and tells officers from the 41st Precinct not to go anywhere. At 19 seconds, when viewed frame by frame (possible by pressing the “E” key in VLC) the video shows PO Cothias running toward § 87(2)(b) apartment door, alone. At 20 seconds, as § 87(2)(b) begins closing her door, she drops her cell phone to the floor. It lands with the camera facing upward, capturing § 87(2)(b) struggling to push her door closed against PO Cothias on the other side. At 22 seconds, § 87(2)(b) asks, “What the fuck is you slamming my door for?” The struggles to keep the door closed and the video ends as PO Cothias and PO Hernandez push the door open. The video does not show clearly whether or not the door strikes § 87(2)(b) in the face.

§ 87(2)(b) cell phone video titled “\20240130_112656 (1).mp4” (Board Review 07) shows PO Cothias and PO Hernandez standing inside § 87(2)(b) apartment (analyzed below in the analysis of Allegations D through G). At 33 seconds, § 87(2)(b) states that it was the Black girls who had “jumped” her. At 35 seconds, § 87(2)(b) points at PO Cothias and states, “And you just kicked my motherfucking door and hit me in the mouth with it.” PO Cothias and PO Hernandez simultaneously deny that this occurred. At 41 seconds, § 87(2)(b) points out injuries and announces which injuries were caused by PO Cothias hitting her with the door and which injuries were caused by the civilians who assaulted her, though the specific injuries are not visible in the video. At 55 seconds, PO Cothias states that he did not do anything. § 87(2)(b) responds that PO Cothias injured her by running to open her door. At 58 seconds, PO Cothias states that § 87(2)(b) tried to slam her door, so he put his foot right there. At 1 minute, § 87(2)(b) argues that he kicked her door and sarcastically states, “But you’re trying to help me, though.”

There are no BWC videos capturing PO Cothias running to § 87(2)(b) apartment door (Board Review 01).

In PO Hernandez’s second BWC video (Board Review 20), at 3 minutes 13 seconds, § 87(2)(b) points to her lower lip and says, “What about my lip?” She pulls her lip downward to show PO Hernandez. It is unclear if there is any injury to her lip. The officers ask, “What happened to your lip?” § 87(2)(b) points at PO Cothias and yells, “He just did that.” She says that PO Cothias injured her lip with the door. She demonstrates, kicking the door, and says PO Cothias kicked the door. PO Cothias replies, “I didn’t do that.”

PO Cothias provided a statement to the CCRB on April 29, 2024 (Board Review 08). He stated that he responded to a 911 call for a dispute involving a knife outside of § 87(2)(b) apartment building. Upon arrival, PO Cothias did not see anyone who appeared to be involved in the dispute, so he and his fellow officers entered the building. When they were on the third floor, § 87(2)(b) yelled from inside her apartment with her door closed. PO Cothias’ fellow officers knocked on § 87(2)(b) door to try to help her. PO Cothias was familiar with § 87(2)(b) from prior incidents. § 87(2)(b) did not open her apartment door and instead was screaming and uncooperative. The officers left her door, as they could not take a report if she did not open her door. Once the officers were outside of the building, § 87(2)(b) yelled out of the third-floor window. Although PO Cothias did not understand what § 87(2)(b) was saying, he told her that he was going to help her. § 87(2)(b) replied that the officers were not there to help her. PO Cothias ran up to § 87(2)(b) floor to help her and he was the first officer to reach her door. PO Cothias ran toward § 87(2)(b) apartment door because he believed she would close the door, as she had explicitly stated she would do so. PO Cothias immediately placed his foot near § 87(2)(b) doorframe to prevent her from closing the door. PO Cothias did not push the door inward toward § 87(2)(b) apartment, nor did he kick the door. § 87(2)(b) was trying to push her door closed. PO Cothias put his hand on the door so that § 87(2)(b) wouldn’t slam the door and hurt him. PO Cothias did not hit § 87(2)(b) with her door. PO Cothias did not know if his placing his foot in the doorway caused the door to strike § 87(2)(b). PO Cothias did not take any action to cause injury to § 87(2)(b).

§ 87(2)(b)

PO Hernandez provided a statement to the CCRB on April 29, 2024 (Board Review 09), PO Rosario provided a statement to the CCRB on May 1, 2024 (Board Review 10), and PO Toledo provided a statement to the CCRB on May 1, 2024 (Board Review 11). PO Hernandez and PO Rosario denied seeing any officer hit § 87(2)(b) with her apartment door. PO Toledo did not recall if any officer hit § 87(2)(b) with her apartment door.

Though it is undisputed that PO Cothias pushed against § 87(2)(b) apartment door and prevented her from closing it, he denied striking § 87(2)(b) with her apartment door. The above-detailed cell-phone video does not clarify whether the door struck § 87(2)(b) face. PO Hernandez's second BWC video shows that § 87(2)(b) complaint that PO Cothias hit her in the face with the door, but the video does not clearly show whether or not there is any injury to her lip, and she also stated that a neighbor had just assaulted her with a bat. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unable to Determine**.

Allegation (B) Offensive Language: Police Officer Harryson Cothias made offensive remarks to § 87(2)(b)

Allegation (C) Discourtesy: Police Officer Harryson Cothias spoke discourteously to § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Harryson Cothias entered § 87(2)(b) in the Bronx.

Allegation (E) Abuse of Authority: Police Officer Keilly Hernandez entered § 87(2)(b) in the Bronx.

Allegation (F) Abuse of Authority: Police Officer Bryan Toledo entered § 87(2)(b) in the Bronx.

Allegation (G) Abuse of Authority: Police Officer Adonis Rosario entered § 87(2)(b) in the Bronx.

§ 87(2)(b) stated (Board Review 05) that when PO Cothias ran to her apartment door, he referred to her as a "scary bitch," or as "crazy," though she did not recall the context in which the words were used. § 87(2)(b) stated that she pushed against her door to try to keep PO Cothias from entering her home. At the same time, PO Cothias pushed against the door from the other side, pushing it inward toward § 87(2)(b) apartment. § 87(2)(b) then observed three more officers, identified by the investigation as PO Hernandez, PO Toledo, and PO Rosario, arrive at her door. § 87(2)(b) grew tired and released the door. PO Cothias entered § 87(2)(b) apartment, moving into her living room. PO Hernandez, PO Toledo, and PO Rosario all followed behind PO Cothias and entered her living room. No officer had requested § 87(2)(b) consent to enter her apartment. Once § 87(2)(b) began recording, all four officers moved out of her living room and closer to her doorway. PO Cothias denied having struggled with § 87(2)(b) at the doorway when § 87(2)(b) confronted him about it.

Event § 87(2)(b) (Board Review 29) reveals that this job was relayed to officers as a 19-52K2 – a dispute with a knife outside. The first caller, who was not present on scene and who said that the building's super had called him, reported at 11:06 AM that two women were outside arguing and had knives, but that no one was injured.

In PO Hernandez's first BWC video (Board Review 12), the officers arrive on scene but encounter

no one outside or in the lobby. They take the elevator up to the third floor. At 4 minutes 6 seconds, PO Hernandez exits the elevator to find § 87(2)(b) standing at the end of the hallway in her doorway. § 87(2)(b) is fully visible. She states that she was “jumped” with a bat. At 4 minutes 18 seconds, PO Hernandez asks § 87(2)(b) if she called 911. § 87(2)(b) states that she does not know who called. At 4 minutes 29 seconds, PO Hernandez asks § 87(2)(b) if she wants to come talk to the officers. § 87(2)(b) responds that she is tired of talking to them and closes her apartment door. From 4 minutes 45 seconds to 7 minutes 35 seconds, the officers knock on § 87(2)(b) door but she does not open the door. The officers then leave § 87(2)(b) floor. The video ends.

PO Hernandez’s first BWC video (Board Review 12), PO Toledo’s first BWC video (Board Review 18), and PO Rosario’s first BWC video (Board Review 17) also end just after the officers walk away from § 87(2)(b) apartment door.

§ 87(2)(b) cell phone video, titled “\20240130_112538.mp4” (Board Review 06) shows, at 18 seconds (when viewed frame-by-frame – press the “E” key in VLC), PO Cothias running toward § 87(2)(b) apartment door. § 87(2)(b) drops her cellphone. The camera continues recording. From 23 second through 38 seconds, § 87(2)(b) struggles to push her door closed as she leans her weight against it, but PO Cothias is on the other side (though not visible in frame), pushing the door inward into § 87(2)(b) apartment. At 40 seconds, § 87(2)(b) states, “Oh, I’m talking crazy; that’s why you’re doing that? Who’s crazy, me or you?” It is unclear if any officer said anything to prompt § 87(2)(b) questions. At 44 seconds, § 87(2)(b) body slides further into her apartment as PO Cothias pushes the door open. At 48 seconds, PO Cothias is shown with his hand on the doorknob, pushing the door open. PO Hernandez is visible next to him.

In § 87(2)(b) second cell phone video, titled “\20240130_112656 (1).mp4” (Board Review 07), at 33 seconds, PO Cothias and PO Hernandez are standing inside § 87(2)(b) apartment. PO Toledo and PO Rosario are standing behind them in the hallway outside of the apartment.

PO Cothias’ (Board Review 13) and PO Hernandez’s (Board Review 20) second BWC videos begin with them already standing inside of § 87(2)(b) apartment. Likewise, PO Toledo and PO Rosario’s second BWC videos (Board Review 21 and 22) begin with PO Toledo and PO Rosario standing in the hallway behind PO Cothias and PO Hernandez, who are inside of § 87(2)(b) apartment.

PO Cothias (Board Review 08) denied ever calling § 87(2)(b) a “scary bitch,” or “crazy.” PO Cothias did not refer to § 87(2)(b) as “crazy” while speaking with his fellow officers, nor did he use any profanity toward § 87(2)(b). PO Cothias stated that § 87(2)(b) was free to close her apartment door if she wished to do. However, he also acknowledged placing his foot in the doorway, preventing her from closing the door. PO Cothias did so because this was a serious 911 report and he wanted to help her. There was no other reason PO Cothias prevented § 87(2)(b) from closing her door. § 87(2)(b) could have refused police assistance. However, PO Cothias assumed, based on previous interactions with § 87(2)(b) that she would continue to call 911. § 87(2)(b) was trying to push her door closed. PO Cothias did not recall what portions of § 87(2)(b) body were visible to him, but did not observe any injuries on her. PO Cothias had no reason to suspect that there was anyone else inside her apartment. § 87(2)(b) was not suspected of any criminality. PO Cothias initially denied having pushed § 87(2)(b) door inward toward her apartment. When asked if § 87(2)(b) voluntarily opened her door, PO Cothias responded that § 87(2)(b) let the door go voluntarily. After reviewing the above-cited cell phone video multiple times during his CCRB interview, PO Cothias acknowledged that he leaned on § 87(2)(b) door, which could have caused the door to open. When asked why he entered the apartment, PO

Cothias responded that he was talking to her. When asked during his CCRB interview if he needed consent to enter the apartment, PO Cothias stated that he was trying to help § 87(2)(b). The question was rephrased and asked again. PO Cothias then acknowledged that he needed consent to enter her apartment.

PO Hernandez (Board Review 09) stated that upon canvassing the building for any injured individuals, she heard and observed § 87(2)(b) shouting. PO Hernandez did not observe any visible injuries on § 87(2)(b) from where PO Hernandez was standing. § 87(2)(b) was shouting loudly and claimed she had been assaulted with a bat. § 87(2)(b) refused to talk to PO Hernandez further and slammed her apartment door shut. § 87(2)(b) was uncooperative, and the interaction was considered to have concluded at that point. When the officers exited the building, § 87(2)(b) began shouting at officers from the third-floor window but refused to go down to speak with them and told them to come up instead. Upon returning to § 87(2)(b) apartment, PO Hernandez observed that § 87(2)(b) door was slightly open. PO Hernandez had not observed any injury on § 87(2)(b) nor had § 87(2)(b) complained of any pain. PO Hernandez then amended her testimony and stated that she could not see § 87(2)(b) at that point. § 87(2)(b) was not suspected of criminality and could have closed her door if she wished. PO Hernandez wished to get a full description of the perpetrators from § 87(2)(b) but § 87(2)(b) was not obligated to provide that information. Because § 87(2)(b) had claimed she was assaulted with a bat, PO Hernandez believed § 87(2)(b) could have been injured. PO Hernandez and PO Cothias entered § 87(2)(b) apartment after § 87(2)(b) released the door. PO Hernandez did not request § 87(2)(b) consent to enter her apartment. PO Hernandez entered the apartment to try to determine what had happened. PO Hernandez wished to verify whether § 87(2)(b) was injured and if she had been assaulted. PO Hernandez could not leave § 87(2)(b) in the apartment if she was injured. There was no other reason PO Hernandez entered § 87(2)(b) apartment. PO Hernandez then stated that the manner in which § 87(2)(b) had been shouting, “erratically,” led her to believe this was an emergency. No other information led her to believe this was an emergency. § 87(2)(b) did not tell the officers to exit her apartment. Had § 87(2)(b) asked the officers to leave, they would have exited. When asked if § 87(2)(b) trying to close her door suggested that she did not want the officers in her apartment, PO Hernandez responded that she did not know. PO Hernandez stated that officers sometimes deal with uncooperative or fearful witnesses, but ultimately she wanted to assure that they could bring § 87(2)(b) attacker to justice.

PO Toledo (Board Review 11) and PO Rosario (Board Review 10) both denied having entered § 87(2)(b) apartment at any time.

According to *Payton v. New York*, 445 U.S. 573 (1980) (Board Review 14), officers may not make a warrantless entry into an individual’s home absent consent or exigent circumstances.

Per *People v. Doll*, 21 N.Y.3d 665 (2013) (Board Review 15), officers may make warrantless entry where 1) the police have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property, 2) the search is not primarily motivated by intent to arrest and seize evidence, and 3) there exists some reasonable basis to associate the emergency with the area or place to be entered and/or searched.

§ 87(2)(b) alleged that PO Cothias called her a “scary bitch,” or “crazy.” Video evidence captures § 87(2)(b) asking PO Cothias, “Oh, I’m talking crazy, that’s why you’re doing that? Who’s crazy, me or you?” However, video evidence did not capture any statement made prior to § 87(2)(b) question. Additionally, PO Cothias denied having called § 87(2)(b) a “scary bitch,” or “crazy.” § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **Unable to Determine**.

It is undisputed that PO Cothias and PO Hernandez entered § 87(2)(b) apartment. § 87(2)(g)

PO Hernandez's first BWC video shows that when she first observed § 87(2)(b) after she claimed to have been assaulted with a bat, PO Hernandez did not observe any injury and left the building after § 87(2)(b) refused to talk to the officers. § 87(2)(g)

it is therefore recommended that **Allegations D and E** be closed as **Substantiated**.

§ 87(2)(b) alleged that all four officers entered her apartment. However, PO Toledo and PO Rosario both denied having entered. § 87(2)(b) stated that this occurred prior to her recording the officers in her apartment, who as a result, moved to her doorway. § 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as **Unable to Determine**.

Allegation (H) Abuse of Authority: Police Officer Harryson Cothias failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: Police Officer Keilly Hernandez failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) (Board Review 05) stated that neither PO Cothias nor PO Hernandez offered her a business card.

PO Cothias (Board Review 08) stated that he did not offer § 87(2)(b) a business card because he had provided her with an incident slip which included his name and shield number. § 87(2)(b) also did not request a business card.

§ 87(2)(b) provided the investigation with a photograph of an incident slip she received from PO Cothias during a prior interaction on July 12, 2023 (Board Review 30).

PO Hernandez stated (Board Review 09) that she did not provide § 87(2)(b) with a business card because she never requested one from her. PO Hernandez did not recall if there were any circumstances detailed in the Patrol Guide for when she is required to proactively offer a business card. However, she did not believe she was required to provide one for this incident.

BWC videos do not capture PO Cothias providing § 87(2)(b) with an incident slip. In PO Cothias' second BWC video (Board Review 13), from 5 minutes through 9 minutes 20 seconds,

§ 87(2)(b) tells the officers about her assault. At 9 minutes 35 seconds, PO Cothias begins walking down the stairs slowly as § 87(2)(b) is still talking with PO Toledo. From 9 minutes 40 seconds, through the end of the video, § 87(2)(b) walks down the stairs with the officers. PO Cothias deactivates his BWC while he is still speaking with § 87(2)(b) (analyzed below under Allegation J). PO Cothias is not captured providing any documentation to § 87(2)(b) before deactivating his BWC.

PO Cothias' third BWC video (Board Review 23) begins with him in the front passenger seat of his vehicle speaking with PO Hernandez through his window. At 18 seconds, he exits the vehicle and he and PO Hernandez interact with § 87(2)(b) on the sidewalk. PO Cothias deactivates his BWC once § 87(2)(b) walks away from them. The video does not capture PO Cothias provide any documentation to § 87(2)(b).

Additionally, none of the other officers' BWC videos capture the interaction between PO Cothias' BWC deactivation on the stairs and their interaction outside the building.

Per the rulings in *People v. Mercado*, 508 N.Y.S.2d 419 (1986) (Board Review 31) and *People v. Dunn*, 563 N.Y.S.2d 388 (1990) (Board Review 32), a search has been conducted whenever officers access an area where an individual has a reasonable expectation of privacy.

Per NYPD Administrative Guide section 304-11 (Board Review 16) officers are to offer a business card at the conclusion of a law enforcement activity, except in cases when a summons is issued or an arrest is made, including a home search.

It is undisputed that PO Cothias and PO Hernandez did not offer § 87(2)(b) their business cards. PO Cothias stated that he provided § 87(2)(b) with an incident slip that included his name and shield number. BWC videos did not capture PO Cothias providing § 87(2)(b) with an incident slip, but the videos were incomplete. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegations H and I** be closed as **Substantiated**.

Allegation (J) Abuse of Authority: Police Officer Harryson Cothias improperly used his body-worn camera.

Allegation (K) Abuse of Authority: Police Officer Keilly Hernandez improperly used her body-worn camera.

Allegation (L) Abuse of Authority: Police Officer Bryan Toledo improperly used his body-worn camera.

Allegation (M) Abuse of Authority: Police Officer Adonis Rosario improperly used his body-worn camera.

Although not alleged by § 87(2)(b) BWC videos show that PO Cothias, PO Hernandez, PO Toledo, and PO Rosario improperly used their BWCs.

The first BWC videos recorded by PO Cothias (Board Review 19), PO Hernandez (Board Review 12), PO Toledo (Board Review 18), and PO Rosario (Board Review 17), all end after § 87(2)(b)

refuses to open her apartment door and the officers, deeming her uncooperative, walk downstairs. PO Cothias' second BWC video (Board Review 13), PO Hernandez's (Board Review 20), PO Toledo's (Board Review 21), and PO Rosario's (Board Review 22) begin with PO Cothias and PO Hernandez inside of § 87(2)(b) apartment, speaking with her, while PO Toledo and PO Rosario stand behind them in the common hallway. They all activate their BWCs at the 60 second mark, when audio begins. Each of their BWC videos end with officers walking down the stairs, still interacting with § 87(2)(b).

PO Cothias' third BWC video (Board Review 23) begins with him in the front passenger seat of his vehicle speaking with PO Hernandez through his window. At 18 seconds, he exits the vehicle and he and PO Hernandez interact with § 87(2)(b) on the sidewalk. Audio is not recorded until the 60 second mark, at which point PO Cothias activates his BWC.

PO Cothias (Board Review 08) stated that at the point when his first BWC video ended, the job was considered concluded because the officers could not take a report if § 87(2)(b) did not open her door. There was no other reason why PO Cothias deactivated at that point. PO Cothias did not activate his BWC when he was outside of the building and § 87(2)(b) was screaming from the window because the job was concluded. When asked during his CCRB interview why he did not activate when he intended to return into the building to help § 87(2)(b) PO Cothias stated that he wanted to know if he could open the door to the building first. When asked if there was any reason he did not activate his BWC once he was inside of the building, PO Cothias responded that there was no reason. PO Cothias did not activate his BWC prior to entering § 87(2)(b) apartment because he was "in the zone," and not focused on anything other than trying to help § 87(2)(b). PO Cothias deactivated his second BWC recording while still speaking with § 87(2)(b) because he was exiting the building, and the job was concluded. PO Cothias stated that there was no reason he did not activate his BWC earlier during his final interaction with § 87(2)(b) on the sidewalk. PO Cothias then stated that he believed the job was concluded and only activated when § 87(2)(b) requested his shield number.

PO Hernandez's statement (Board Review 09) was consistent with PO Cothias' in that she ended her first BWC video because there was insufficient evidence to proceed with investigating the 911 report after § 87(2)(b) closed her door. PO Hernandez stated that at the point when her first BWC video ended, the job was concluded. PO Hernandez acknowledged that she did not activate her BWC again until she was already inside § 87(2)(b) apartment. PO Hernandez did not activate her BWC sooner because initially, she did not know what sort of situation the officers had encountered. Once PO Hernandez saw that § 87(2)(b) was somewhat cooperative and began to provide a description of what had occurred earlier, PO Hernandez activated her camera. There was no other reason PO Hernandez did not activate earlier. When asked why she did not activate her BWC prior to reentering the building, when § 87(2)(b) was shouting out of the window, PO Hernandez stated that she wanted to see how the situation would develop. PO Hernandez did not know what the Patrol Guide required regarding BWC activation during adversarial encounters and stated that the Patrol Guide changes "every day." PO Hernandez did not activate her BWC video while interacting with § 87(2)(b) outside of the building on the sidewalk. PO Hernandez was not required to activate at that point because the job was concluded.

PO Toledo (Board Review 11) stated that when his first BWC video ended, it was his intention to leave the scene, as no one on scene identified themselves as the 911 caller. PO Toledo stated that when he and his fellow officers reentered the building, he forgot to activate his BWC because they were going upstairs quickly to determine if § 87(2)(b) needed assistance. PO Toledo activated his BWC once his fellow officers were already interacting with § 87(2)(b). PO Toledo then deactivated his BWC when he was exiting the building. He and his fellow officers were still

interacting with § 87(2)(b) at this time, as she was following them outside. PO Toledo deactivated while still interacting with § 87(2)(b) because the investigation was concluded, and everything had been explained to § 87(2)(b). There was no other reason he deactivated his BWC while still interacting with § 87(2)(b).

PO Rosario (Board Review 10) stated that when his first BWC video ended, the job was concluded because § 87(2)(b) refused to talk to the officers. PO Rosario did not activate his BWC when officers returned into the building because he and his fellow officers ran back into the building after hearing § 87(2)(b) yelling from the third-floor window. PO Rosario activated his BWC when he realized that he was not recording. When he activated his BWC, his fellow officers were already interacting with § 87(2)(b).

Per Patrol Guide Procedure 212-123 (Board Review 24), officers are required to activate their BWCs prior to engaging in any police action. Officers are to record any interactions that escalate to become adversarial or may hold evidentiary value. Officers are to record continuously until investigative, enforcement, or other police action is concluded.

The NYPD's Body-Worn Camera Impact and Use Policy (April 11, 2021) (Board Review 25) explains that for Axon cameras such as those in use here, once powered on, BWCs continuously record video, re-writing over captured video in 60 second intervals. When an officer activates the record switch, the preceding 60 seconds of video recording is automatically saved. That 60 seconds of recorded video will not contain audio. Once the record switch is activated, the BWC records all audio and video until the record switch is deactivated.

§ 87(2)(g) However, they each failed to reactivate their BWCs when they reentered the building, knowing that they intended to help § 87(2)(b) after she shouted at them from the § 87(2)(b) window. All four officers failed to activate their BWCs until PO Cothias and PO Hernandez were already inside § 87(2)(b) apartment speaking with her. § 87(2)(g)

PO Cothias' third BWC video shows that he and PO Hernandez continued interacting with § 87(2)(b) once they were outside of the building. PO Cothias did not reactivate his BWC until § 87(2)(b) requested his shield number and PO Hernandez failed to reactivate her BWC altogether. § 87(2)(g)

It is therefore recommended that **Allegations J through M** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
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